

DATA ETHICS & PRIVACY ASSESSMENT FRAMEWORK

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SECTION A — FIVE Ps ETHICAL DATA ASSESSMENT

For each dimension, identify the specific issue, evidence from the case, risk level, and your recommended action.

Dimension Definition Guiding Question	Assessment + Evidence	Risk Level	Recommended Action
P1 PROVENANCE Where does the data come from? Was it legally acquired with appropriate consent from those who provided it? <i>Guiding question:</i> <i>Was the data collected lawfully and with consent covering all current uses? Does any data come from third parties under arrangements that may not cover current processing?</i>	Assessment: ICE Entertainment gathers customers' information during sales processes and while streaming and through subscription services. None of the customers requested such collection, consolidation and use for profiling their streaming history. There is no contract which enables them to do so. Evidence: Geo Broadcasting Ltd. receives identifiable customer streaming requests in real time and now also returns usage feeds into the model. The contractual arrangement was last reviewed in 2019 and does not explicitly address personal information handling.	Risk Level: ☒ HIGH ☐ MEDIUM ☐ LOW	Recommended Action: Review and update the Geo Broadcasting Ltd contract immediately, obligations for sharing information and consent requirements. Perform formal data provenance audit in all ten countries.
P2 PURPOSE Is the data being repurposed? Would the original providers recognise and agree to its current use? <i>Guiding question:</i> <i>Is the data being used for purposes beyond what was communicated at the time of collection? Has the secondary use been disclosed, consented to, or formally authorised?</i>	Assessment: The customer information originally was gathered for transactional use, such as making sales, handling subscriptions and providing entertainment services but now only used for value tiers without their consent. Evidence: Natalie Black, Head of Marketing & CRM, has been quietly progressing the loyalty program design. With the dimensional model now live, her team has direct access to	Risk Level: ☐ HIGH ☒ MEDIUM ☐ LOW	Recommended Action: Immediately suspend the loyalty program data use. Get the board approval for any use of customer behavioral information for secondary purposes.

	extracts that were impossible to assemble eighteen months ago. They are using customer streaming history, address-change events tracked through the customer dimension, and inferred household composition where two customers share a Together subscription, all to build customer value tiers.		
P3 PROTECTION How is the data protected? Who is responsible for its security, access, retention, and eventual destruction? <i>Guiding question:</i> <i>Are access controls, storage practices, and distribution channels adequate? Is there a documented breach response plan? Is data retained longer than necessary?</i>	Assessment: ICE Entertainment's overall data protection is very poor in several aspects. It is being shared within teams as attachments and employees are accessing it without proper care. Evidence: Several store managers in two countries are known to share a single point-of-sale login. The internal audit team raised this in 2024; no remediation is recorded. The data flowing through that shared login feeds the model. A junior analyst stores 5,000 customer records on her personal, unmanaged laptop.	Risk Level: ☐ HIGH ☒ MEDIUM ☐ LOW	Recommended Action: Adopt formal data classification system and access controls. Implement a documented breach response plan. Establish and adhere to a data retention & deletion policy. Enroll all devices accessing customer data in device management.
P4 PRIVACY Who has access to identifying data? How are individual records anonymised? Is the privacy notice accurate and current? <i>Guiding question:</i> <i>Is individually identifiable information unnecessarily exposed? Does the organisation's privacy notice accurately describe current data practices, including any third-party sharing?</i>	Assessment: ICE Entertainment exposed individually identifiable customer information. They shared all the data without taking proper permission or consent from the customers. Reports with identifiable customer data are sent as email attachments to 10 nations, where there are no access restrictions. Evidence: The 2021 privacy notice on the website refers only to email and postal contact. It does not refer to streaming history, behavioural profiling, or third-party providers such as Geo Broadcasting Ltd, all of which are now visible in the model.	Risk Level: ☒ HIGH ☐ MEDIUM ☐ LOW	Recommended Action: Update the privacy notice highlighting information such as collecting information about streaming history, behavioral profiling, households deduction and Geo Broadcasting Ltd sharing. Only distribute identifiable customer data via authorized channels.

P5 PREPARATION How was data cleaned and prepared? How is accuracy verified? How are inconsistencies and multi-source combinations managed? <i>Guiding question:</i> <i>Is the data accurate, consistently defined, and governed well enough to support the decisions being made from it? Is data lineage documented?</i>	Assessment: ICE Entertainment has poor data preparation and data quality management due to lack of standardised way of representing the data and to keep proper track. There is customer duplication as well. Evidence: Revenue, margin, and active customer are calculated differently across regions, and none of those definitions has ever been formally documented, agreed, or assigned to an owner.	Risk Level: ☐ HIGH ☐ MEDIUM ☒ LOW	Recommended Action: Define data quality rules and standards in all data source systems. Converge all the basic metric definitions, such as revenue, margin, active customer. Use master data management for market and product category.

SECTION B — AUSTRALIAN PRIVACY PRINCIPLES & NDB SCHEME Identify the privacy principles and obligations most relevant to this case. For each, describe the current state with specific evidence and state the action required.			
Relevant APP / Obligation What it requires	Compliance Status	Current State	Action Required
APP / Obligation: APP 1: Open and Transparent Management What does it require? 1. All organisations should have a policy that outlines what personal information	Status: ☐ Compliant ☐ Partial ☒ Non-Compliant	Current State: ICE Entertainment's privacy notice was last updated in 2021 and only covers email, postal contact and nothing about streaming history, behavioural profiling, household composition inference or Geo Broadcasting Ltd.	Action Required: Ensure privacy notice is updated immediately to accurately reflect all current data collection and how it is being used.

they are collecting, how they will use it.			
APP / Obligation: APP 3: Collection of Solicited Personal Information What does it require? Organisations are not allowed to collect personal information without informing. It must do so in a lawful manner, with the knowledge of the individual.	Status: ☐ Compliant ☒ Partial ☐ Non-Compliant	Current: Basic customer data for transactions is gathered legally. But sensitive data is also being collected without the customers' knowledge or consent.	Action Required Formal privacy impact assessment of the loyalty program needed. Get clear customer consent for behavioural profiling and secondary use of streaming data.
APP / Obligation: APP 5: Notification of Collection What does it require? Before the time of collection, organisations must notify individuals of the purposes for which their information is being collected.	Status: ☐ Compliant ☒ Partial ☐ Non-Compliant	Current State: Customers are notified of basic collection through the 2021 privacy notice. However cross border data flows to Melbourne head office from nine other countries have never been formally assessed or disclosed.	Action Required: Update collection notices across all ten countries. Formally assess and document all cross border data flows.
APP / Obligation: APP 11: Security of Personal Information	Status: ☐ Compliant ☐ Partial ☒ Non-Compliant	Current State: Multiple simultaneous security failures exist, and the data is not handled properly while sharing or accessing.	Action Required: Implement formal access controls and device management for all devices accessing customer data. Remediate shared point of sale credentials immediately.

What does it require? Organisations must take reasonable steps to protect personal information from misuse or unauthorised disclosure.			
APP / Obligation: APP 12: Access to Personal Information What does it require? Organisations must give individuals access to their personal information on request and must take reasonable steps to correct information that is inaccurate.	Status: ☐ Compliant ☒ Partial ☐ Non-Compliant	Current State: No formal process exists for customers to access or correct their personal information. Even customer data deletion process does not exist.	Action Required: Establish a formal process for handling customer access and correction requests across all ten countries.
NDB Scheme Notifiable Data Breaches Notify OAIC and affected individuals within 30 days of an eligible data breach likely to cause serious harm.	Status: ☐ Compliant ☐ Partial ☒ Non-Compliant	Current State: No documented breach response plan exists. No incidents have been formally classified as breaches despite multiple high risk situations.	Action Required: Immediately develop and document a formal breach response plan meeting NDB scheme obligations and designated breach response team.

References

- Segalla, M. and Rouziès, D., 2023. The ethics of managing people's data. *Harvard Business Review*, 101(4), pp.86-94.
- <https://www.oaic.gov.au/privacy/australian-privacy-principles/australian-privacy-principles-quick-reference>